

ademption (*f*), but the rule applies also to *satisfaction* (*g*). In the case of a *debt* (as distinct from a portion) said Lord Cottenham, small circumstances of difference between the debt and the legacy are held to negative the pre-
 [*407] sumption of satisfaction (*h*), but in the * case of *portions* small circumstances are disregarded. Thus it is, that a smaller legacy is not held to be in satisfaction of part of a larger *debt*, but it may be satisfaction *pro tanto* of a *portion* (*a*). However, the differences in the limitations may be so great as to negative the presumption of satisfaction in case even of portions (*b*). If a father covenant on the marriage of his daughter to pay a sum by way of portion, and then by his will bequeaths to her a share of his residuary estate, but by the same will gives directions for payment of his debts, the presumption of *satisfaction* is negated by the direction for payment of debts, and then the portion is raised as a debt, while the daughter is also allowed to claim a share of the residue (*c*). But if a testator direct payment of his debts and gives a share of his residuary estate to a daughter and then makes an advance to her upon her marriage, the presumption of *ademption* is not negated by the direction for payment of debts in the previous will (*d*). Where a father is a debtor, not morally, but actually to his

(*f*) *Earl of Durham v. Wharton*, 3 Cl. & Fin. 146; 3 M. & K. 472; 5 Sim. 297; *Twisden v. Twisden*, 9 Ves. 427, *per* Lord Eldon; *Trimmer v. Bayne*, 7 Ves. 515, *per* Lord Eldon; cited with approbation, *Powys v. Mansfield*, 6 Sim. 561; *Powys v. Mansfield*, 3 M. & Cr. 374, *per* Lord Cottenham; *Weall v. Rice*, 2 R. & M. 251; *Platt v. Platt*, 3 Sim. 503; *Monck v. Lord Monck*, 1 B. & B. 304, *per* Cur.; *Lloyd v. Harvey*, 2 R. & M. 310; *Sheffield v. Coventry*, 2 R. & M. 317; *Hartopp v. Hartopp*, 17 Ves. 184; *Stevenson v. Masson*, 17 L. R. Eq. 78; [*Edgeworth v. Johnston*, 11 I. R. Eq. 326.]

(*g*) *Clark v. Sewell*, 3 Atk. 98, *per* Lord Hardwicke; *Thynne v. Glengall*, 2 H. L. Ca. 131; *Campbell v. Campbell*, 1 L. R. Eq. 383; *Sparkes*

v. Cator, 3 Ves. 530; *Russell v. St. Aubyn*, 2 Ch. D. 398; *Romaine v. Onslow*, 24 W. R. 899; [*Mayd v. Field*, 3 Ch. D. 587;] and see *Hartopp v. Hartopp*, 17 Ves. 191.

[(*h*) See also *Re Dowse*, 50 L. J. N. S. Ch. 285.]

(*a*) *Thynne v. Glengall*, 2 H. L. Ca. 131.

(*b*) *Coventry v. Chichester*, 2 De G. J. & S. 336; 2 L. R. H. L. 71; 2 H. & M. 149; [*Tussaud v. Tussaud*, 9 Ch. D. 363.]

(*c*) *Chichester v. Coventry*, 2 L. R. H. L. 71; 2 De G. J. & S. 336; 2 H. & M. 149; *Lethbridge v. Thurlow*, 15 Beav. 334; *Paget v. Grenfell*, 6 L. R. Eq. 7; *Alleyn v. Alleyn*, 2 Ves. sen. 37.

(*d*) *Dawson v. Dawson*, 4 L. R. Eq. 504.